

Argument for the attorney.

"due process of law," were declared to be *illegal and void* (and were also reversed), by courts having a superintending or appellate jurisdiction.

V. An action on the case may be maintained at common law for the disturbance of a party in the possession and enjoyment of an office, franchise, or other incorporeal right.*

It is no objection to the maintenance of a suit simply that it involves a determination of a party's title to his office.†

VI. In an action against a judge of any court, whether of record or otherwise, for any act done by him or by his command, the question in every case to be determined is, *was the act done a judicial act, done within his jurisdiction?* If it was not, he can claim no immunity or exemption by virtue of his office from liability as a trespasser; "for if he has acted without jurisdiction, he has ceased to be a judge."‡

* Walker v. Lamb, Croke Car. 258; Ferrer v. Johnson, Croke Eliz. 336; Lee v. Drake, 2 Salkeld, 468; Jones v. Pugh, Id. 465; Hastings v. Prothonotary of Stepney Court, 1 Siderfin, 410; Strode v. Byrt, 4 Modern, 418; Crowder v. Oldfield, 6 Id. 19; Beau v. Bloom, 3 Wilson, 456; Sutherland v. Murray, cited in 1 Term, 538; Carrington v. Taylor, 11 East, 571; Thompson v. Gibson, 7 Meeson & Welsby, 456; Peter v. Kendal, 6 Barnewall & Creswell, 703; McMahon v. Lennard, 6 House of Lords Cases, 970; Rogers v. Dutt, 13 Moore's Privy Council, 209; Townsend v. Blewett, 5 Howard's Mississippi, 503; Wammack v. Holloway, 2 Alabama, 31; Palmer v. Fiske, 2 Curtis, 14; People v. Turner, 1 California, 190; Bruce v. Fox, 1 Dana, 450; Glen v. Hodges, 9 Johnson, 67.

† Arris v. Stukely, 2 Modern, 260; Boyter v. Dodsworth, 6 Term, 681; Drew v. Fletcher, 1 Barnewall & Creswell, 283; Capel v. Child, 2 Crompton & Jervis, 558; Lightly v. Clouston, 1 Taunton, 113; Wildes v. Russell, C. B. Law Rep. for Dec. 1866, p. 728; Hearsey v. Pruyne, 7 Johnson, 179; Avery v. Tyingham, 3 Massachusetts, 160; Allen v. McKeen, 1 Sumner, 317.

‡ 2 Institutes, 427; The Marshalsea Case, 10 Reports, 76 A; Floyd v. Barker, 12 Id. 23; Hoskins v. Matthews, 1 Levinz, 292; Martin v. Marshall, Hobart, 63; Bushell's Case, 1 Modern, 119; Hamond v. Howell, 2 Id. 219; Smith v. Bouchier, 2 Strange, 993; Groenvelt v. Burwell, 1 Ld. Raymond, 454; Miller v. Seare, 2 W. Blackstone, 1141; Perkin v. Proctor, 2 Wilson, 386; Mostyn v. Fabrigas, 1 Cowper, 161; Sutton v. Johnstone, 1 Term, 493; Welch v. Nash, 8 East, 402; Burdett v. Abbott, 14 Id. 1; Ackerley v. Parkinson, 3 Maule & Selwyn, 411; Mitchell v. Foster, 4 Perry & Davison, 153; S. C., 12 Adolphus & Ellis, 472; Garnett v. Ferrand, 9 Dowling & Ryland, 670; Van Sandau v. Turner, 6 Q. B. 773; Gossett v. Howard, 10 Id. 411; Houlden v. Smith, 14 Id. 841; Kinning v. Buchanan, 8 C. B. 271; Watson v. Bodell, 14 Meeson & Welsby, 70; Ferguson v. Kinnoull, 9 Clark &